

SCHEDULE (B.)—PART 3—*continued.*

SCHED. (B.)
PART 3.
Civil Services
(Supple-
mentary),
1921-1922.

CIVIL SERVICES— <i>cont.</i>	Sums not exceeding	
	Supply Grants.	Appropriations in Aid.
	£	£
Brought forward - -	2,572,000	—
UNCLASSIFIED SERVICES.		
For the salaries and expenses of the State Liquor Districts, including the salaries of the Central Office, and the cost of compensation for acquisition and of direct control of licensed premises and businesses - -	62,100	—
For the cost of certain miscellaneous war services - - - - -	100,000	—
For the cost of the relief of unemployment - - - - -	5,500,000	—
Total Civil Services - -	8,234,100	—

CHAPTER 64.

An Act to authorise during a limited period the provision of Poor Relief to Destitute Able-bodied Persons out of Employment in Scotland, to extend the borrowing powers of Parish Councils, and for other purposes in connection therewith.

[10th November 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Notwithstanding anything in section sixty-eight of the Poor Law (Scotland) Act, 1845 (in this Act referred to as "the principal Act"), assessments imposed and levied for the relief of the poor shall extend and be applicable to the relief of destitute able-bodied persons

Poor relief to
destitute able-
bodied persons
out of employ-
ment.
8 & 9 Viet.
c. 83.

out of employment, so, however, that nothing in this Act contained shall require the parish council of any parish to provide relief to any such person unless he satisfies the parish council (whose decision shall be final) that he is destitute and unable to obtain employment.

(2) The provisions of the principal Act, except those relating to the recovery of expenses from the parish of settlement, shall, so far as not inconsistent with this Act, apply to relief to a destitute able-bodied person out of employment in like manner as they apply to relief under the principal Act, provided that the application for or receipt of relief by any destitute able-bodied person under the provisions of this Act shall not affect the acquisition or retention of a settlement by such person.

(3) This section shall be deemed to have had effect as from the nineteenth day of April, nineteen hundred and twenty-one.

Loans to
parish
council in
connection
with relief
to destitute
able-bodied
persons out
of employ-
ment.

2.—(1) In addition to the power to borrow contained in section eighty-nine of the principal Act, and notwithstanding anything in that section, it shall be competent for the parish council of any parish, with the consent of the Scottish Board of Health (in this Act referred to as "the Board"), to borrow on the security of the assessments present and future, leviable by the council for the relief of the poor in the parish, such sum as the Board may approve, and any sum so borrowed shall be repaid within such period not exceeding five years from the date on which the sum is borrowed as the Board may determine: Provided that in exceptional cases where the Board are satisfied, having regard to the financial position of any parish and to all the circumstances of the case, that it is expedient that the period for repayment should be extended beyond the term of five years, the Board may extend such period to a term not exceeding ten years from the date on which the sum is borrowed.

(2) Where, before the passing of this Act, a parish council has, with the approval of the Board, borrowed a sum in excess of one-half of such part of the assessments for the relief of the poor as was due and unreceived at the time, such sum shall, notwithstanding anything in section eighty-nine of the principal Act, be deemed to be and always to have been validly borrowed; and any such

loan may be secured on the assessments present and future leviable by the parish council for the relief of the poor in the parish, and the provisions of the immediately preceding subsection with respect to the period of repayment shall apply to any such loan.

(3) The bonds to be granted in respect of any such borrowing or any such loan and the transfers or assignments and discharges thereof may be in, or as nearly as may be in, the form set out in the Schedule to the Poor Law Loans and Relief (Scotland) Act, 1896.

49 & 50 Vict.
c. 51.

(4) Any loan or loans to which this section applies shall not be reckoned in any calculation of the statutory limit of loans under subsection (1) of section thirty-eight of the Local Government (Scotland) Act, 1894.

57 & 58 Vict.
c. 58.

3.—(1) This Act may be cited as the Poor Law Emergency Provisions (Scotland) Act, 1921.

Title, construction,
and extent.

(2) In this Act, unless the context otherwise requires, the expression “parish” includes “combination.”

(3) This Act shall be read and construed along with the principal Act and the Acts amending the same, and any reference in this Act to any provision of the principal Act shall be construed as a reference to that provision as amended by any other Act prior to the passing of this Act.

(4) This Act shall apply to Scotland only and, subject as hereafter provided, shall have effect until the fifteenth day of May, nineteen hundred and twenty-two, or until such later date or dates (if any) not being more than one year thereafter as the Board may fix, and the Board may fix different dates for different provisions of this Act:

Provided that—

(i) the provisions of section thirty-eight of the Interpretation Act, 1889 shall apply as if the several provisions of this Act were repealed on the date, or on the respective dates, on which such provisions cease to have effect; and

52 & 53 Vict.
c. 63.

(ii) a parish council shall have power at any time during the period of repayment of any

loan to which section two of this Act applies to re-borrow money on the security referred to in that section for the purpose of discharging in whole or in part any such loan, so, however, that the period of repayment shall not be extended by reason of such re-borrowing.

CHAPTER 65.

An Act to authorise the Treasury to guarantee the payment of loans to be applied towards the carrying out of capital undertakings, or in the purchase of articles manufactured in the United Kingdom required for the purposes of any such undertakings, and to amend the Overseas Trade (Credits and Insurance) Act, 1920, and the Overseas Trade (Credits and Insurance) Amendment Act, 1921. [10th November 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power of
Treasury to
guarantee
loans.

1.—(1) If the Treasury, after consultation with an advisory committee nominated by the Treasury for the purposes of this section, are satisfied that the proceeds of any loan proposed to be raised, whether within or without the United Kingdom, by any government, any public authority, or any corporation or other body of persons, are to be applied towards or in connection with the carrying out of any capital undertaking, or in, or in connection with, the purchase of articles other than munitions of war, manufactured or produced in the United Kingdom required for the purposes of any such undertaking, and that the application of the loan in the manner proposed is calculated to promote employment in the United Kingdom, the Treasury may,